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Provision of February 22, 2024
Register of provisions
n. 110 of February 22, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
providing provisions for the adaptation
of the national legislation to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter
"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures with external relevance,
aimed at carrying out the tasks and
exercising the powers assigned to the Guarantor for the
protection of personal data, approved by
Resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter "Guarantor Regulation
No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's
Regulation No. 1/2000 on the organization and
operation of the office of the Guarantor for the
protection of personal data, doc. web n. 1098801;

REPORTER Attorney Guido Scorza;

PREAMBLE

1. Introduction.

With a complaint submitted pursuant to Article 77 of
the Regulation, Dr. XX, who practices as a
medical professional, alleged, through her
lawyer, an alleged violation of
the regulations regarding the protection of personal data

by the Order of Surgeons and Dentists of the Province of Padua (hereinafter, the "Order").

In particular, it was alleged that the Order had sent to numerous public entities the resolution of its Board of Directors No. XX of XX1, which ordered the suspension of the complainant for failing to meet the anti-SARS-CoV-2 vaccination requirement.

The complainant also alleged that she had not received any information regarding the processing of her personal data by the Order.

2. The investigative activity.

In response to a request for information from the Authority (see note prot. n. XX of XX), the Order, with note prot. n. XX of XX, stated, in particular, that:

"the [Order] transmitted resolution No. XX dated XX [...] to the interested party on XX with Prot. N. XX";

"on the same date, it also transmitted the communication of the suspension pursuant to Article 4, paragraph 7 of Decree Law No. 44/2021, with Prot. N. XX [...], to the same interested party, to the General Director and the Health Director of ULSS 6 Euganea (in response to the completion of the procedure initiated with their act of ascertaining the non-compliance with the vaccination obligation), to the entities indicated in Articles 2 and 49 of Presidential Decree No. 221/1950 integrated by the President of the competent territorial Court (for equivalence with the Public Prosecutor), by the President of Enpam (for any pension-related assessment connected to the suspension) and by the local authorities responsible for supervision and public and health safety (Regional Health Councillor, Chief of Police, Mayor of Padua), all subjects involved in the management of the health emergency pursuant to Article 17 bis of Decree Law No. 18 of March 17, 2020";

"the communication to the entities was made on the assumption that the informative task that belonged to the Order in this initial phase of the ascertaining of non-compliance with the vaccination obligation (therefore during the validity of the first version of Article 4 of Decree Law No. 44/2021) should be carried out in analogy to what occurs in the case of suspension of a healthcare professional for disciplinary reasons";

"on a date subsequent to the sending of the resolution regarding the [complainant] (i.e., only on XX), the National Federation, with communication No. XX [...] transmitted to the Order a circular from the Ministry of Health in which it expressed the opinion that suspensions from professional practice for non-compliance with the vaccination obligation, not having a disciplinary nature, should not be communicated

to the entities referred to in Articles 2 and 49 of Presidential Decree No. 221/1950, nor to the other entities involved in the management of the pandemic. The Order [...] from that moment onward omitted the aforementioned communications”;

“the complainant applied for registration

with the [Order] on [...].XX [and] at [that] time [...] received information regarding the purposes and methods of processing personal data by the Entity, pursuant to Article 13 of Legislative Decree 196/2003

in the text then in force”;

“on May 25, 2018, upon the entry into force of the Regulation [...], the Entity published on its website the ‘Data Protection Policy’

****Personal of the Order of Physicians and Dentists of the Province of Padua****

and has proceeded to send a mass newsletter to all members (at the time more than 7,000 between physicians and dentists) containing the same policy [...]”;

“the [Order] on its institutional website <https://www.omco.pd.it/> on the homepage in the professional section regularly publishes for its members all the forms related to professional practices accompanied by the specific information referred to in Articles 12, 13, and 14 [of the Regulation] both in brief and extended form [...]”;

“moreover, from the institutional website each physician can access a digital portal

<https://omceopd.iredweb.it/> by registering for their own reserved area (via SPID or CIE) where they can take advantage of digital services without having to go to the offices of the Entity. At the time of registration, all information pursuant to Article 13 of the Regulation is provided to the member, and for each practice, if necessary, the information is provided”;

“after the entry into force of D.L. 172/2021 starting from XX, the Order as the data controller drafted a specific information notice on the processing of personal data regarding vaccination obligations pursuant to Articles 13 and 14 of the [Regulation], which was communicated via PEC to the complainant on XX (prot. N. XX) along with the invitation to document their vaccination status.”

With a note dated XX (prot. n. XX), the Office, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Order, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, concerning the alleged violations of Articles 5, paragraph 1, letter a), 6, paragraph 1, letters c) and e), and paragraphs 2 and 3, letter b), of the Regulation, as well as Article 2-ter of the Code, for having communicated to third parties the personal data of the complainant in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in the absence of a legal basis.

With the same note, the aforementioned holder was invited to submit defensive writings or documents to the Authority or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

With a note dated XX (prot. n. XX), the Order submitted a defensive memorandum, stating, in particular, that:

“undoubtedly the Order did not indicate a provision that expressly provided for the necessity of communicating the suspension measure to the subjects in question, but this [...] does not determine a lack of normative basis for the processing carried out”;

“at the time of the contested facts, the suspension measure was not at all adopted by the Order, but by the territorially competent Health Authority: the Order merely acknowledged the suspension that had taken place and made the communications”;

“it follows that the General Director and the Health Director of ULSS 6 already knew that the

[complainant] had been suspended from professional practice for failure to vaccinate at the moment they received the communication from the Order, given that it was the Health Authority they directed that had issued the suspension”;

“therefore [...] the communication to the top roles of the territorially competent Health Authority certainly did not violate the principle of offensiveness. And this is because communicating news to a person who already knows it cannot, by definition, harm the right or privacy of anyone”;

regarding the “sending of the suspension resolution to the Regional Health Councillor, the Police Chief, and the Mayor of Padua” [it should be considered that] the amendment introduced by the decree-law of October 8, 2021, No. 139 (converted, with modifications, by Law No. 3 of December 3, 2021) to Article 2-ter of the Code [...] has newly inserted paragraph 1-bis”, which “must be read together with the first paragraph”, having “the legislator [...] expressly legitimized the lawfulness of all processing carried out by public administration when necessary for the fulfillment of a task carried out in the public interest or for the exercise of public powers attributed to it”;

“[...] the Cons[.] No. 4 of the [Regulation] recalls that the processing of personal data “should be at the service of man” and that the right to data protection “is not an absolute prerogative, but must be considered in light of its social function and must be balanced with other fundamental rights, in compliance with the principle of proportionality””;

“[...] the Order [...] has a function of protecting citizens and health as a whole. To definitively clarify the public interest task of the Orders is Law No. 3 of January 11, 2018 [...] which, in Article 4, paragraph 3, provides that Orders and their national Federations: promote and ensure the independence, autonomy, and responsibility of the professions and professional practice, the technical-professional quality, the enhancement of the social function, the safeguarding of human rights and the ethical principles of professional practice indicated in their respective codes of ethics, in order to guarantee the protection of individual and collective health”;

“the Order [...], a public entity with the statutory purpose of protecting individual and collective health, must certainly be considered a public administration authorized to process personal data necessary for the fulfillment of the aforementioned task pursuant to the new paragraph 1-bis of Article 2-ter of the Code”;

“that the vaccination obligation imposed on operators pubblico.

The aim of public health pursued by sanitary measures during the pandemic is equally undeniable, clearly stated in the opening lines of paragraph 1 of Article 44 of Decree-Law No. 44/2021;

“The Order deemed it necessary to send the communication of the suspension to the institutions involved at the local level in managing the pandemic (pursuant to Article 17-bis of Decree-Law No. 18/2020), namely the Mayor and the Chief of Police of Padua and the Regional Health Councillor. This was done because it was considered functional to the better pursuit of the health protection objective that these institutions also be informed of the suspensions that had occurred, in addition to the Entities referred to in Article 49, paragraph 2 of Presidential Decree No. 221/1950 [...], health protection [...] not only of potential patients but also of unvaccinated doctors who, if infected, could face significant complications: thus, health protection also of the [complainant], health deemed by the Order to be more important, especially in the midst of a pandemic, compared to confidentiality;

“At XX, the priority was to prevent unvaccinated doctors from being able to work (or being forced to work), and this was for the protection of everyone’s health. To assert in 2023, after the pandemic has ended, that the communications pursuing the aforementioned objective were actually ineffective in containing the spread of infections seems to be an exaggeration;

“Also because [...] the data of the [complainant] that was transmitted was not health-related data, but only a temporary requirement for the exercise of the profession, and it was already public data as it was published in the Medical Register;

“The involvement of other authorities not included in Articles 2 and 49 of Presidential Decree No. 221/1950 was dictated by the necessity to communicate such information also to the Institutions responsible for pandemic control, such a task was perceived by the Entity as a necessary fulfillment for the performance of a task deployed for the exercise of public powers, attributed to the Order [...]”.

During the hearing, requested pursuant to Article 166, paragraph 6, of the Code and held on XX (see protocol no. XX of the same date), the Order stated, in particular, that:

“The Order is required to ensure the existence of the requirements established by law for the exercise of the profession. Upon the loss of such requirements, the Order is equally obliged to inform all competent authorities of this circumstance, including those – such as the Mayor – who have health-related competencies;

“The Order has fulfilled the obligations provided for by the regulatory framework adopted to combat the SARS-CoV-2 epidemic, making the necessary communications to protect public health;

“It was a mere acknowledgment of an administrative sanction, which did not involve the disclosure of any sensitive data;

“The right to personal data protection must be considered subordinate to the primary need to protect public health and the safety of patients and doctors;

“In a context of evident legal uncertainty and in the difficult emergency situation, the Order nonetheless made an assessment of the legal basis in terms of reasonableness, considering Article 2-ter, paragraph 1-bis, of the Code to be applicable [...];

“Therefore, the Order acted in absolute good faith, solely to pursue the public interest and the protection of the health of citizens and doctors, not considering, in any case, the subjective element of fault to be present.”

3. Outcome of the investigative activity.

Public entities may process personal data, including data related to special categories of data (see Article 9, paragraph 1, of the Regulation), if the processing is necessary “to comply with a legal obligation to which the data controller is subject” or “for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller” (Articles 6, paragraph 1, letters c) and e), and 9, paragraph 2, letter g) of the Regulation, as well as Articles 2-ter and 2-sexies of the Code).

European legislation provides that “Member States may maintain or introduce more specific provisions to adapt the application of the rules of [...] the regulation with regard to processing, in accordance with paragraph 1, letters c) and e), determining more precisely specific requirements for processing and other measures to ensure lawful and fair processing [...]” (Article 6, paragraph 2, of the Regulation). In this regard, it is highlighted that the operation of communicating personal data to third parties by public entities is permitted only under the conditions provided for by Article 2-ter of the Code.

The data controller is, in any case, required to respect the principles regarding data protection, among which are “lawfulness, fairness, and transparency” as well as “data minimization,” according to which personal data must be “processed lawfully, fairly, and transparently in relation to the data subject” and “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed” (Article 5, paragraph 1, letters a) and c), of the Regulation).

Regarding the processing of personal data related to the anti-SARS-CoV-2 vaccination, the legislator - with Article 4 of Decree-Law No. 44 of April 1, 2021, converted into Law No. 76 of May 28, 2021, in the text applicable at the time of the facts subject to complaint - had established that vaccination constituted “an essential requirement for the exercise of the profession and for the performance of work activities” for healthcare professionals and operators of public interest. professional suspension and the measures taken by the competent authorities must be communicated to the interested parties and to the relevant professional orders.”

Article 4, paragraph 6, provided that “after the deadlines for the certification of compliance with the vaccination obligation have elapsed, the competent local health authority verifies the non-compliance with the vaccination obligation and, after acquiring any further information from the competent authorities, immediately communicates in writing to the interested party, the employer, and the relevant professional order. The adoption of the verification act by the local health authority results in the suspension of the right to perform services or tasks that involve interpersonal contacts or pose, in any other form, the risk of spreading SARS-CoV-2 infection.”

The subsequent paragraph 7 specified that “the suspension referred to in paragraph 6 is immediately communicated to the interested party by the relevant professional order.”

In this context, following discussions between the Authority, the national federations of health professions orders, and the Ministry of Health, the latter had sent a interpretative note to the national federations (prot. n. XX), regarding “Article 4 of the decree-law of April 1, 2021, n. 44 converted with amendments by law of May 28, 2021, n. 76. Obligations by the Orders,” reiterating and integrating the previous indications provided in the note of XX (prot. n. XX).

In particular, in the aforementioned interpretative note of XX, it was specified that the above-mentioned Article 4 was “in the intention of the legislator, an indispensable requirement for the same to be considered suitable to carry out their professional activity, as well as a legitimizing condition for the exercise of the same, in any legal form.” This resulted in the consequence that “the activity of the Order provided for by [...] paragraph 7 consists of a mere informational burden, that is, the communication to the interested party [...] without any merit evaluation, of the suspension resulting ex lege from the verification act of the ASL, recording the relevant annotation in the register, in compliance with the rules on the protection of personal data confidentiality.” Therefore, from the non-compliance with this professional requirement “there can only follow for the healthcare professional [...] the ex lege suspension from the exercise of the healthcare professional activity outright.”

The above-mentioned regulatory framework was subsequently reformed by the legislator (see decree-law of November 26, 2021, n. 172), introducing a different procedure for verifying the vaccination requirement by the professional orders through their respective national federations.

It should be noted that, following the issuance of decree-law of October 31, 2022, n. 162 and starting from November 1, 2022, the vaccination requirement is no longer provided for those exercising health professions and operators of health interest, the following is highlighted.

During the validity of the above-mentioned regulatory framework, the various parties involved (employers, regions, health companies, professional orders), in carrying out the treatments in question (which find their legal basis in the aforementioned regulatory provision) were required to ensure compliance with data protection principles (Article 5 of the Regulation), as well as to process data through authorized personnel properly trained regarding access to data (Articles 4, n. 10, 29, 32, paragraph 4, of the Regulation), also taking into account the particular sensitivity of the same (Article 9, paragraphs 2 and 4, as well as Article 4, n. 15, and rec. 35 of the Regulation).

In the system of the Regulation and the Code, these sector-specific norms constituted the legal basis for the processing operations necessary for verifying the existence (or not) of the professional requirement, uniformly delineating at the national level the scope of processing permitted to each of the institutional parties involved in the verification process (see the numerous measures of the Authority during the emergency period and, in particular, the opinions rendered on the implementing provisions of the aforementioned framework, specifically regarding the one rendered with provision of December 13, 2021, n. 430, web doc n. 9727220, see also the provisions referred to therein). As traditionally stated by the Authority, particularly in a work context as delicate as that of passenger air transport, the treatments carried out for the purpose of verifying the requirements for access and the performance of certain professions provided for by specific legal provisions must be carried out in strict compliance with the limits and conditions set forth by such a reference framework (see provision of April 27, 2016, n. 194, web doc n. 5149198).

In this specific case, the Order, on XX, sent the note prot. n. XX, concerning “communication of the suspension ex Article 4 paragraph 7 of the Decree-Law of 1/4/2021, n. 44, converted by law of May 28, 2021, n. 76,” by which the suspension of the appellant was ordered for lack of the professional requirement of vaccination against SARS-CoV-2, to the following parties: the appellant, the Public Prosecutor of Padova, the Ministry of Health, the Ministry of Justice, the Ministry of Education, University and Research, the Ministry of Labor and Social Policies, the President of FNOMCeO, the President of ENPAM, the Regional Health Councillor, the Prefect of Padova, the Police Chief of Padova, the President of the Court of Padova, the Mayor of the Municipality of Padova, the General Director of Ulss 6 Euganea, the Health Director of Ulss 6 Euganea, all the Orders of Surgeons and Dentists of Italy.

In this regard, it should be noted that, based on Article 49, paragraph 2, of D.P.R. n. 221/50, “the measures of suspension from professional practice and the measures taken by the competent authorities must be communicated to the interested parties and to the relevant professional orders.”

Radiation, when they have become definitive, are communicated to all Orders or Colleges of the category to which the suspended or radiated healthcare professional belongs and to the authorities and entities to which the Register must be sent pursuant to Article 2, namely to “the prefect [...], the High Commissioner for hygiene and public health [now the Ministry of Health], the Ministries of grace and justice [now the Ministry of Justice], public education [now the Minister of Education and Merit], and labor and social security [now the Ministry of Labor and Social Policies], to the judicial offices of the province, as well as to the Federation to which the Order or College belongs and to the national entity for welfare and assistance of the category.”

With note prot. n. XX of XX, the Ministry of Health clarified - subsequent to the facts subject to complaint - that, “considering that the acts of ascertaining the non-compliance with the vaccination obligation [...], from which the immediate suspension of professional practice derives, do not have a disciplinary nature, [the Ministry] [...] is of the opinion that the related communications should not be sent to the entities referred to in Article 49 of DPR 221 of 1950.” Therefore, in light of the subsequent clarifications from the Ministry, the communication to the aforementioned entities regarding the suspension of the professional was not due in this case.

However, considering that the note from the Order of XX is prior to the date on which the Ministry provided the aforementioned clarifications and taking into account the uncertainty of the legal framework, it is believed that the communication to the subjects contemplated by Article 49 of DPR April 5, 1950, n. 221 of the suspension measure that affected the complainant does not constitute a violation of the regulations on data protection, lacking the subjective element of fault (cf. Article 3 of Law November 24, 1981, n. 689; see, in a similar sense, provisions of May 17, 2023, n. 194, web doc n. 9910245 and November 24, 2022, n. 385, web doc n. 9839018).

In any case, the correspondence in question did not involve the communication of “health-related data” (Article 4, par. 1, n. 15, of the Regulation), since, although this definition also includes the provision of health services (see, albeit with regard to the different context of mandatory vaccinations for students, the “Note from the President of the Guarantor, Antonello Soro, on vaccination obligations” of October 20, 2018, web doc n. 7037400), in this specific case, considering the specific regulatory framework mentioned above, the lack of anti-SARS-CoV-2 vaccination could not be related to specific reasons for exemption or deferral, connected to morbidity situations, past or present, temporary or permanent of the interested party (cf. provisions of May 17, 2023, n. 194, cited and November 24, 2022, n. 385, cited).

Conversely, in fact, if the Health Authority had ascertained the occurrence of the aforementioned health conditions, the suspension of the professional would not have been ordered, according to what is expressly provided for by Article 4, paragraphs 5 and 6, of the aforementioned Legislative Decree 44/2021 (in the text in force at the time, pursuant to which “upon receiving the report referred to in paragraph 4, the local health authority of residence invites the interested party to produce, within five days from the receipt of the invitation, the documentation proving the vaccination or the omission or

deferral thereof [...], or the submission of the vaccination request or the non-existence of the prerequisites for the vaccination obligation [...]. After the deadlines for the certification of compliance with the vaccination obligation [...], the competent local health authority ascertains the non-compliance with the vaccination obligation”).

It should, however, be noted that the Order sent a copy of the urgent suspension resolution not only to the subjects provided for by DPR April 5, 1950, n. 221 but also to the Regional Health Assessor, the Chief of Police of Padua, the Mayor of the Municipality of Padua, the General Director of Ulss 6 Euganea, and the Health Director of Ulss 6 Euganea.

Whereas the communication to such subjects of the intervened suspension certainly falls outside the scope of application of Article 49, paragraph 2, of DPR April 5, 1950, n. 221, it is observed that the Order, during the investigation, did not indicate an appropriate provision (cf. Article 5, par. 1, lett. a), 6, par. 1, lett. c) and e), and paragraphs 2 and 3, lett. b), of the Regulation, as well as 2-ter of the Code) that expressly provided for the communication of the suspension measure to the subjects in question.

As for the circumstance that, according to the Order, the communication addressed to the General Director and the Health Director of ULSS 6 Euganea was made “in response to the completion of the procedure initiated with their act of ascertaining the non-compliance with the vaccination obligation,” it is noted that, as illustrated above, Article 4, paragraph 6, of Legislative Decree 44/2021, in the text in force at the time of the facts subject to complaint, provided that “after the deadlines for the certification of compliance with the vaccination obligation [...], the competent local health authority ascertains the non-compliance with the vaccination obligation and, after acquiring any further information from the competent authorities, immediately communicates in writing to the interested party, the employer, and the professional Order of belonging. The adoption of the ascertainment act by the local health authority determines the suspension from the right to perform services or duties that involve interpersonal contacts or pose, in any other form, the risk of spreading SARS-CoV-2 contagion.” The subsequent paragraph 7 specified that “the suspension referred to in paragraph 6 is immediately communicated to the interested party.”

from the relevant professional order.” Therefore, within this framework, the communication of the suspension measure adopted by the Order to the General Director and the Health Director of the health authority was not necessary.

The defensive argument of the Order, based on the assertion that sending the suspension measure to the Regional Health Councillor, the Chief of Police of Padua, and the Mayor of Padua was necessary because they are “local authorities tasked with public safety and health surveillance duties,” all subjects involved in managing the health emergency pursuant to Article 17-bis of Decree-Law No. 18 of March 17, 2020, cannot be accepted either. In this regard, it should first be noted that the Order did not indicate any specific sector provision regarding public safety and health that expressly required the communication in question. Nor does the reference to what is provided by Article 17-bis of Decree-Law No. 18 of March 17, 2020, appear relevant, given that the processing of personal data in question was governed by a specific regulatory framework that detailed the data flows between the various parties involved for the purpose of verifying the existence of the professional requirement (employers, regions, health authorities, professional orders). In any case, Article 17-bis of Decree-Law No. 18 of March 17, 2020, while providing that the subjects identified by the norm may carry out personal data processing that is necessary for the performance of the functions assigned to them in the context of the emergency caused by the spread of SARS-CoV-2, preserved the necessity that such processing must be carried out by adopting appropriate measures to protect the rights and freedoms of the data subjects and in compliance with the principles set out in Article 5 of the Regulation, including the principle of data minimization, according to which data must be “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed” (Article 5, paragraph 1, letter c), of the Regulation; see provisions of May 17, 2023, No. 194, cited; November 24, 2022, No. 385, cited; November 11, 2021, No. 400, web document No. 9726426; April 15, 2021, No. 140, web document No. 9587053; May 13, 2021, No. 202, web document No. 9678535).

In this case, the communication of the complainant's personal data to the aforementioned entities, for

the reasons outlined above, was not necessary not only to fulfill a legal obligation or to exercise a public power or a task of public interest, but also, in general terms, for the purposes of containing the SARS-CoV-2 pandemic, which is an essential condition for the application of the relevant norm (see provisions of May 17, 2023, No. 194, cited, and November 24, 2022, No. 385, cited).

The defensive argument, based on the assertion that the communication of personal data in question, although not expressly provided for by law, can be considered lawful under Article 2-ter, paragraph 2-bis, of the Code, as it is necessary for the fulfillment of a task carried out in the public interest or for the exercise of public powers attributed to the Order, cannot be accepted. This is because, in the context of the emergency legislation adopted to address the SARS-CoV-2 epidemic, it was the legislator itself, by adopting the aforementioned Article 4 of Decree-Law No. 44 of April 1, 2021, that defined, balancing the various interests at stake with uniform provisions for the entire national territory, the communication flows between the various public subjects involved, deemed necessary for the verification of the possession of the vaccination requirement and the consequent suspension from the exercise of certain professions, also due to the implications of such a condition for the protection of public health.

In this framework, which, as stated, constituted the legal basis for the aforementioned treatments, the communication of the complainant's personal data, carried out by the Order, cannot be considered "necessary" for the fulfillment of a task carried out in the public interest or for the exercise of public powers (Article 6, paragraph 1, letter e), of the Regulation).

In light of all the considerations above, it must be concluded that the Order, by communicating the personal data in question, acted in a manner not compliant with the principle of "lawfulness, fairness, and transparency" and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a) and 6, paragraph 1, letters c) and e), and paragraphs 2 and 3, letter b), of the Regulation, as well as Article 2-ter of the Code.

Finally, it is noted that the Order stated that it had published on its official website on May 25, 2018, the "Data Protection Policy of the Order of Physicians and Dentists of the Province of Padua" and sent a copy of it to all members, informing them that their personal data would be processed, as in the case in question, to "maintain and update the Register of Surgeons and the Register of Dentists" and that they could be communicated to "other public authorities in compliance with legal obligations." For these reasons, the complaint must be considered unfounded, limited to this aspect.

4. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation – for which the truthfulness may be subject to accountability under Article 168 of the Code – although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the archiving of the present procedure, as none of the cases provided for apply.
from Article 11 of the Regulation of the Guarantor No. 1/2019.

The preliminary assessments of the Office are therefore confirmed, and the unlawfulness of the processing of personal data carried out by the Order is noted, for having communicated the personal data of the complainant in a manner not compliant with the principle of "lawfulness, fairness, and transparency" and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code. Considering that the violation of the aforementioned provisions occurred as a result of a single conduct, Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, all violations are subject to the sanction provided for by Article 83, paragraph 5, of the Regulation, as also referred to by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

In this context, considering, in any case, that the conduct has exhausted its effects, the conditions for the adoption of further corrective measures referred to in Article 58, paragraph 2, of the Regulation do

not exist.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i, and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Guarantor, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] corrective measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case" and, in this context, "the College [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code" (Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019).

In this regard, considering Article 83, paragraph 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

In relation to these elements, it must be considered that, in this case, the violation: concerned the personal data relating to a single data subject (cf. Article 83, paragraph 2, letter a), of the Regulation); has a negligent character, as the Order acted in good faith, believing that the communication of the personal data in question was necessary for the pursuit of its institutional purposes and for contributing to the protection of public health, and also took place in the emergency context due to the SARS-CoV-2 pandemic, in which the Order, like other Administrations, had to make complex decisions quickly, in the face of a particularly complex and continuously evolving emergency regulatory framework, so much so that currently the professional requirement of vaccination is no longer required for healthcare personnel as of November 1, 2022, due to the decree-law of October 31, 2022, No. 162 (cf. Article 83, paragraph 2, letter b), of the Regulation); did not concern special categories of personal data (cf. Article 83, paragraph 2, letter g), of the Regulation).

It is therefore believed that, in this case, the level of severity of the violation committed by the data controller is low (cf. European Data Protection Board, "Guidelines 04/2022 on the calculation of administrative fines under the GDPR" of May 23, 2023, point 60).

That said, it is believed that, for the purposes of quantifying the sanction, the following mitigating circumstances should be taken into account:

- the Order has offered a good level of cooperation with the Authority during the investigation (Article 83, paragraph 2, letter f), of the Regulation);
- there are no previous relevant violations committed by the Order (Article 83, paragraph 2, letter e), of the Regulation).

By reason of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the pecuniary sanction at €5,000 (five thousand) for the violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code, as an administrative pecuniary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

Taking into account the broad scope of circulation of the complainant's personal data as a result of the conduct of the Order, it is also believed that the accessory sanction of publication on the Guarantor's website of this provision should apply, as provided for by Article 166, paragraph 7 of the Code and Article 16 of the Regulation of the Guarantor No. 1/2019.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 exist.

ALL OF THE ABOVE HAVING BEEN STATED, THE GUARANTOR declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the unlawfulness of the processing carried out by the Order for violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code, in the terms stated in the motivation;

ORDERS

the Order of Medical Surgeons and Dentists of Padua, in the person of the legal representative pro tempore, with registered office at Via San Prosdocimo, 6/8 - 35139 Padova (PD), C.F. 80037160282, to pay the sum of euro 5,000 (five thousand) as an administrative pecuniary sanction for the violations indicated in the reasoning. It is represented that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

ORDERS

the aforementioned Order, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of euro 5,000 (five thousand) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981;

PROVIDES

pursuant to Article 166, paragraph 7, of the Code, for the publication of this provision on the website of the Guarantor, considering that the conditions set forth in Article 17 of the Guarantor Regulation No. 1/2019 are met.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, against this provision it is possible to file an appeal before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, February 22, 2024

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Scorza

THE SECRETARY GENERAL

Mattei